UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

MISC. NO. 09-26

IN RE: IMPLEMENTATION OF THE APPELLATE CASE MANAGEMENT SYSTEM

O R D E R

By direction of the Chief Judge, effective October 1, 2026, new appeals and petitions will be opened and maintained in the Appellate Case Management System (ACMS). Appeals and petitions filed before that date will continue to be maintained in the Case Management/Electronic Case Filing system (CM/ECF).

Assignment of Cases: Unless otherwise ordered by the Court, every appeal or petition filed on or after October 1, 2026, shall be opened and maintained in ACMS. Every case submitted before October 1, 2026, shall continue to be maintained in CM/ECF. The filing date of a case for purposes of this paragraph shall be determined under Rule 25 of the Court's Rules of Practice and Procedure (Rules). The Clerk of the Court may correct the electronic-system assignment of a case; such a correction does not alter the filing date of the case or any document.

Subsequent Filings: After a case has been opened, every document required to be filed electronically must be filed through the electronic filing system in which the case is maintained, unless the Court's Rules, the E-Rules, this Order, instructions issued by the Clerk, or an order entered in the case permits another method of submission.

Continued Application of Existing Rules: Except as provided in this Order, the Court's Rules and the E-Rules remain in effect and apply to cases maintained in ACMS to the same extent that they apply to cases maintained in CM/ECF.

Self-Represented Parties: Nothing in this Order eliminates or restricts a method of submission otherwise permitted by the Court's Rules or E-Rules for a self-represented party.

Required Use of the Correct Electronic Filing System: A document required to be filed through ACMS that is submitted through CM/ECF will not be accepted for filing. A document required to be filed through CM/ECF that is submitted through ACMS likewise will not be accepted for filing. The Clerk will direct the filer to resubmit the document through the correct system. Submission through the incorrect electronic filing system does not constitute filing and does not preserve or extend a filing deadline. Nothing in this paragraph limits the authority of the Court to grant relief by order when warranted.

Required Use of ACMS for Case-Initiated Related Filings: The Court will not accept case-initiating filings including Notices of Appeal and petitions for extraordinary relief or any other documents for filing through the esubmission@uscourts.cavc.gov or any electronic mailbox.

Represented filers must initiate new appeals and petitions and submit all other documents through the ACMS. *Pro hoc vice* filers are permitted to submit their application and initial notice of appearance through efiling@uscourts.cavc.gov and all subsequent filings must be submitted through ACMS.

Clerk's Instructions and Conflicting Technical Provisions: The Clerk is authorized to issue and revise technical instructions, user guides, filing-event lists, registration procedures, and other administrative guidance necessary to implement this Order and operate ACMS and CM/ECF during the transition period. When a CM/ECF-specific technical procedure cannot be performed in ACMS in the same manner, filers must follow the corresponding ACMS procedure and instructions issued by the Clerk. Such instructions do not alter a filing deadline or any substantive requirement unless authorized by the Court's Rules, the E-Rules, or an order of the Court. To the extent that a CM/ECF-specific provision of the Court's Rules or E-Rules conflicts with this Order concerning the assignment of a case to ACMS or the required use of ACMS, this Order controls.

Publication and Duration: The Clerk shall publish this Order and appropriate ACMS filing instructions on the Court's website. This Order takes effect on October 1, 2026, and remains in effect until amended or superseded by further order of the Court or by amendments to the Court's Rules or E-Rules.

DATED: September 29, 2026

FOR THE COURT:

/s/Tiffany M. Wagner
TIFFANY M.
WAGNER
Clerk of the Court